NinjaTrader Vendor Professional and Compliance Guidelines

NinjaTrader, LLC ("NinjaTrader") is a software development company which owns and supports the NinjaTrader trading platform. The following is a summary of professional and compliance guidelines used by NinjaTrader to determine whether or not to accept or continue to allow vendors and/or vendor products and services into the NinjaTrader Ecosystem ("NE"). This summary is **NOT** intended to provide any legal or compliance advice to you.

The following guidelines are not intended to be exclusive and NinjaTrader reserves the rights, at any time, and for any reason, to reject an application for inclusion in the NE or discontinue participation in the NE.

Before any decision regarding acceptance into the NE is made, we may review all promotional materials (including but not limited to websites, videos, social media, online advertising, print advertising and emails) you provide us and that we are aware of.

Your promotional materials must

- Be professional in appearance and not be misleading.
- Balance risk versus reward in any statements made.
- Be based on supportable facts or clearly indicate where an opinion is being made.
- Include all appropriate and required risk disclosures in same or similar style text as the primary content that is easily visible. **Examples are included in Appendix A**. Please note, these disclosures are NinjaTrader Ecosystem requirements and may not meet the full burden of the various regulatory agencies. As such we suggest you consult with an expert to ensure compliance of your promotional materials. It is your responsibility to understand if NFA or CFTC or other jurisdiction registration is required.
  - General Risk Disclosure
  - Hypothetical Performance Disclosure
  - Testimonial Disclosure
  - Live Trade Room Disclosure
  - Digital Currencies Disclosure

Your promotional materials may not

- Reference services provided by NinjaTrader Clearing, LLC an NFA registered FCM (NFA # 0309379) which is an affiliate company to NinjaTrader or state that any relationship exists with NinjaTrader Clearing, LLC
- Be likely to deceive the public or contain any material misstatement of fact
- Mention the possibility of profit unless accompanied by an equally prominent statement of risk of loss
- Include any reference to actual past trading profits without mentioning that past performance is not necessarily indicative of future results and include a full past performance result – Not cherry picked.
- Contain any performance information, either real or hypothetical, that has not been updated at least once every 90 days to remain current and relevant to the current market environment
  - This performance data should include, at a minimum: entry and exit price, timestamp of trade, amount of contracts traded, and direction of trade (long/short)

- Include any specific numerical or statistical information about the past performance of any actual accounts (including rate of return)
    - Unless such information is and can be demonstrated to NFA to be representative of the actual performance for the same time period of all reasonably comparable accounts and
    - In the case of rate of return figures, unless such figures are calculated in a manner consistent with CFTC Regulation 4.25(a)(7) for commodity pools and with CFTC Regulation 4.35(a)(6), as modified by NFA, (6)
- Make guarantees of profit or financial success of any kind. No exaggerated or absolute statements or claims can be used.
    - Words including, but not limited to, the following are viewed as unfavorable:

Guaranteed	Insured	Best in the World	Best in the Industry
World-Class	Outstanding	Greatest	Highest
Finest	Unreal	Magnificent	Stellar
Momentous	Dominant	Matchless	Unsurpassed
Unparalleled	Unprecedented	Unrivaled	Successful
Profitable			

    - "90% success rate," "predict," and similar types of numeric statements.
    - The word "will" being used instead of "may" or "could" when describing possible future results.
- Include statements that are presented as fact unless it can be proven that information is an indisputable fact. Statements of opinion must be presented as such
- Mischaracterize your relationship to NinjaTrader such as but not limited to "approved", "certified", or "premium"
- State or imply that NinjaTrader endorses or recommends, or has endorsed or recommended, you or any of your products or services.
- State, or imply, that simulated historical test results are the same as actual past results. Hypothetical performance based on simulated trading must be clearly marked as such, and include a **Hypothetical Performance Disclosure**. Hypothetical results may not be used when more than three months of actual results are available. Supporting documentation that refers to simulated or hypothetical results should also contain a **Hypothetical Performance Disclosure**. Information presented must be updated on a regular basis. You may not use outdated information.
- Include testimonials without being accompanied by a prominent disclosure stating that the testimonial may not be representative of the experience of other clients or customers, is not a guarantee of future performance or success, and, if applicable, the testimonial has been paid for.
- Include video content or chart images without being accompanied by relevant **Risk Disclosures** and **Hypothetical Performance Disclosures**
- Disclosures must be presented visually at the beginning of any video materials

Use of Logos and Trademarked Materials

- All approved NinjaTrader and Kinetick logos provided in the NinjaTrader Media Kit require a minimum of .25" or 18px of space on all sides
- NinjaTrader® must always be listed as one word "NinjaTrader" with a capital 'N' and 'T'
- Kinetick® must always be listed with a capital 'K'
- Any of your product names, marks, URL's, social media handles may **NOT** contain any NinjaTrader trademark or trade name, whether registered or unregistered, including but not limited to *NinjaTrader, NinjaScript, Kinetick, SuperDOM, Market Analyzer and FX Board*
- If in the description of your product or service you mention the NinjaTrader platform or that the product is designed to work with a specific platform feature, the following must be included prominently on the page where it is said:
    - *"NinjaTrader® is a registered trademark of NinjaTrader Group, LLC. No NinjaTrader company has any affiliation with the owner, developer, or provider of the products or services described herein, or any interest, ownership or otherwise, in any such product or service, or endorses, recommends or approves any such product or service."*
- Any and all product names, trade names, trademarks or service marks you use must be owned by you and not infringe the name or mark of any other person or entity

Respect for Original Work

In the spirit of fostering creativity and innovation within the NinjaTrader Ecosystem, we want to remind all developers and partners that creating or distributing imitations of other developers' indicators is strictly prohibited, both within and outside the ecosystem. This policy is in place to protect the hard work and intellectual property of our community members. We encourage all developers to focus on originality and contribute unique solutions that enhance the experience for everyone.

Appendix "A"

Any required risk disclosures should be included in same or similar style text as the primary content that is easily visible. Hyperlinks may be used in addition to, but not in place of, the prominent disclosure text. Following is a partial listing of items that should include an appropriate risk disclosure.

- All website pages
- All videos
- All online advertising
- All print advertising
- All emails sent and received
- All promotional materials
- All social media – A risk disclosure link must be in the profile description, ie:
    - Twitter
    - Facebook
    - StockTwits
    - Instagram
    - Pinterest
    - LinkedIn
    - Vimeo
    - TikTok

Disclosure Examples

Please consult with the local regulators in your jurisdiction, attorneys and/or NFA/CFTC for further information.

Risk Disclosure Example:
Futures and forex trading contains substantial risk and is not for every investor. An investor could potentially lose all or more than the initial investment. Risk capital is money that can be lost without jeopardizing ones' financial security or life style. Only risk capital should be used for trading and only those with sufficient risk capital should consider trading. Past performance is not necessarily indicative of future results.

Hypothetical Performance Disclosure Example:
Hypothetical performance results have many inherent limitations, some of which are described below. No representation is being made that any account will or is likely to achieve profits or losses similar to those shown; in fact, there are frequently sharp differences between hypothetical performance results and the actual results subsequently achieved by any particular trading program. One of the limitations of hypothetical performance results is that they are generally prepared with the benefit of hindsight. In addition, hypothetical trading does not involve financial risk, and no hypothetical trading record can completely account for the impact of financial risk of actual trading. for example, the ability to withstand losses or to adhere to a particular trading program in spite of trading losses are material points which can also adversely affect actual trading results. There are numerous other factors related to the markets in general or to the implementation of any specific trading program which cannot be fully accounted for in the preparation of hypothetical performance results and all which can adversely affect trading results.

Testimonials Example:
Testimonials appearing on this website may not be representative of other clients or customers and is not a guarantee of future performance or success.

Live Trade Room Example:
This presentation is for educational purposes only and the opinions expressed are those of the presenter only. All trades presented should be considered hypothetical and should not be expected to be replicated in a live trading account.

Virtual Currency Example:
View CFTC advisories as they contain more information on the risks associated with trading virtual currencies.